tions. The personal inconvenience to the very respectable military gentlemen sent out by the War Department, resulting from the delay or even their entire disappointment of a presentation to the Emperor would have been of entire insignificance in view of the serious departure from law and usage in their mission and the possible complications which might result to the neutral position of this Government from the exaggeration of importance which will be very apt to attend the report of the presentation of arms and military equipments to Japan in the present excited state of feeling in China and the jealousy on the part of the latter power, of the relations of the United States toward Japan.

On the receipt of your despatch a note was addressed to the War Department on the subject, a copy of which note is enclosed, also a copy of the reply of the Secretary of War.

I am, Sir, Your obedient servant,
Hamilton Fish.

Enclosures:
1. Mr. Fish to Mr. Belknap, Sept. 12, 1874.
2. Mr. Belknap to Mr. Fish " 25, 1874.

L. No. 76. Department of State,
Washington, October 5, 1874.

John A. Bingham, Esquire
&c. &c. &c.

Sir:

Your despatches numbered 112 and 113 have been received.

I am, Sir,
Your obedient servant,
John L. Cadwalader,
Acting Secretary.

This

No. 77. Department of State,
Washington, October 9, 1874.

John A. Bingham, Esquire
&c. &c. &c.

Sir:

Your despatch No. 112 of the 18th August last, in relation to the arrest of Col. Legendre, late Consul at Amoy has been received.

A despatch (No. 197 of August 11, 1874) has also been received from George F. Seward Esquire, the Consul General of the United States at Shanghai, informing the Department of the arrest.

The Department is not advised of the termination of the proceedings nor whether Col. Legendre has been held for trial or what course has finally been adopted.

It does not clearly appear to the Department that a state of hostilities existed between China and Japan, nor is the Department precisely informed that Col. Legendre had actually accompanied the Expedition to Formosa nor whether

he had committed any act within the jurisdiction of the Consul at Amoy or of any other Consulate for which he could be arrested and brought to trial, nor is the Department advised of the precise offence charged against him and for which the arrest was made. In the absence of information on these points and particularly in the absence of information concerning the precise charge made against Col. Legendre and the proof supporting it, and of the authority to make the arrest, the Department withholds its approval and any opinion.

Mr. Seward has been requested to furnish information upon all these particular points with details of the various steps and present position of the case.

The Department has had occasion to refer to these general questions growing out of the Formosa Expedition in a late despatch.

I am, Sir,
Your obedient servant,
John L. Cadwalader.

L. No. 78. Department of State,
Washington, October 14, 1874.

John A. Bingham, Esquire
&c. &c. &c.

Sir:

Your despatches numbered 114, 115, 116, 117, 118, 119 and 120 have been received.

I

I am, Sir,
Your obedient servant,
John L. Cadwalader,
Acting Secretary.

---

9. No. 79. Department of State,
Washington, October 24, 1874.

John A. Bingham, Esquire
&c. &c. &c.

Sir:

I have to acknowledge the receipt of your dispatch of September 1, No. 117, and to inform you in reply that, in compliance with your suggestion, the Prices Current of tea for the Japanese ports, called for by the instruction of January 1873, may now be furnished by the Consul General instead of by the Legation. The Consul General will be instructed accordingly.

I am, Sir,
Your obedient servant,
Hamilton Fish.

9Z. No. 80. Department of State,
Washington, October 31, 1874.

John A. Bingham, Esquire
&c. &c. &c.

Sir:

Mr. Hegermann-Lindencrone, the Chargé d'Affaires of Denmark in this country, has, by direction of his government,